

1.

CASE #	CASE NAME	HEARING NAME
CVCO2600654	HOUSE OF HOOKAH LLC vs CITY OF RIVERSIDE	PETITION FOR WRIT OF ADMINISTRATIVE MANDATE AND TRADITIONAL MANDATE

Tentative Ruling:

The Writ of Administrative Mandate is denied. The parties should be prepared to discuss moving forward with the traditional mandate cause of action.

2.

CASE #	CASE NAME	HEARING NAME
CVCO2600654	HOUSE OF HOOKAH LLC vs CITY OF RIVERSIDE	DEMURRER ON OTHER PETITION

Tentative Ruling:

Writ of Mandate:

A proceeding for the issuance of a writ of mandate is a special civil proceeding governed by the provisions of CCP § 1063 et. seq. Controlling statutes provide for review of administrative actions and decisions in two types of mandate proceedings: ordinary (traditional) mandate (CCP § 1085) and administrative mandate (CCP § 1094.5.) The type of mandate applicable in any case is determined by the nature of the administrative action or decision to be reviewed. (*Tielsch v. City of Anaheim* (1984) 160 Cal.App.3d 570, 574.)

First Cause of Action for Writ of Administrative Mandate:

An administrative writ may be issued to inquire into the validity of any final administrative order or decision made as the result of a proceeding where a hearing is required to be given and evidence is required to be taken. (CCP § 1094.5(a).) Pursuant to CCP §1094.5, the court's inquiry into the validity of an administrative order or decision shall extend to questions regarding: (1) whether the agency proceeded without or in excess of jurisdiction; (2) whether there was a fair trial; and (3) whether there was any prejudicial abuse of discretion. With narrow exceptions, the court's inquiry under section 1094.5 is limited to the administrative record made before the agency. (*City of Hesperia v. Lake Arrowhead Community Services Dist.* (2019) 37 Cal. App. 5th 734, 766.)

The City argues that the first cause of action is time-barred. A demurrer based on a statute of limitations defense lies only where it appears clearly and affirmatively on the face of the complaint that the claim is barred. (*Committee for Green Foothills v. Santa Barbara Bd. of Supervisors* (2010) 48 Cal. 4th 32, 442.) "While a demurrer based on statute of limitations lies where the dates in question are shown on the face of the complaint, if those dates are missing, there is no ground for a general demurrer. (*United*

Western Medical Centers v. Superior Court (1996) 42 Cal. App. 4th 500, 505.)

Pursuant to CCP § 1094.6, any petition [for judicial review of a local agency's decision] shall be filed not later than the 90th day following the date on which the decision becomes final. If there is no provision for reconsideration of the decision, or for a written decision or written findings supporting the decision, in any applicable provision of any statute, charter, or rule, for the purposes of this section, the decision is final on the date it is announced... If there is a provision for reconsideration, the decision is final for purposes of this section upon the expiration of the period during which such reconsideration can be sought; provided, that if reconsideration is sought pursuant to any such provision the decision is final for the purposes of this section on the date that reconsideration is rejected. (CCP § 1094.6(b).) Section 1094.6 is a procedural statute of limitations which is jurisdictional and the court may not entertain a 1094.6 petition unless it is filed on or before the 90th day after the local agency's decision. (*Tielsch v. City of Anaheim* (1984) 160 Cal. App. 3d 576, 578-79.) The limitations period is triggered by the date on which the decision becomes final rather than on service of the decision. (*Citicorp North America, Inc. v. Superior Court* (1989) 213 Cal. App. 3d 563, 568.)

Based on the facts appearing on the face of the Petition, following the May 23, 2025 inspection of the Business, the City asserted that certain licenses were expired and initiated enforcement proceedings. (Pet., ¶ 4.) On or about August 5, 2025, the Riverside Police Department issued a written notice entitled "Owner Notification of the Revocation of the Tobacco Retail Establishment Permit," stating that the tobacco retail permit was revoked pursuant to Riverside Municipal Code section 6.24.120(A) and advising that the revocation would be stayed if a timely request for an administrative hearing was filed within ten days. (Id.) Petitioners admit that no hearing was requested during the ten-day period, although they blame their former counsel for failing to make the request. (Id. at ¶ 6.) As such, based on the facts alleged, the decision became final on August 15, 2025. The Petition was not filed until March 5, 2026, significantly beyond the 90-day deadline. Therefore, the Court lacks jurisdiction to consider the Petition for Administrative Writ of Mandate.

Petitioners argue that there are factual disputes regarding attorney fault and extrinsic mistake. CCP § 473(b) permits the court to relieve a party from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect or inexcusable mistake or neglect of an attorney who swears an affidavit attesting to such fault. However, section 473 does not provide for relief from mandatory deadlines that are deemed jurisdictional in nature. (*Jackson v. Doe* (2011) 192 Cal. App. 4th 742, 755.) Because section 1094.6 is a mandatory procedural deadline that is considered jurisdictional, Petitioners' contentions that the failure to timely file the Petition are unavailing. The first cause of action for Writ of Administrative Mandate is time-barred. The Demurrer is sustained without leave to amend.

Second Cause of Action for Writ of Traditional Mandate:

Traditional mandate proceedings are used to review actions or decisions of an administrative body or officer acting in a legislative or executive capacity. (CCP § 1085; *Michael Leslie Productions v. City of Los Angeles* (2012) 207 Cal.App.4th 1011, 1020-1021.) Petitioners assert that City's refusal to restore their tobacco retail permit, and its position that the current tobacco retail permit moratorium prevents reinstatement, constitute ongoing administrative actions subject to review under section 1085. (Pet. ¶ 25.)

Pursuant to Section 1085, [a] writ of mandate may be issued by any court to any inferior tribunal, corporation, board, or person, to compel the performance of an act which the law specially enjoins, as a duty resulting from an office, trust, or station, or to compel the admission of a party to the use and enjoyment of a right or office to which the party is entitled, and from which the party is unlawfully precluded by that inferior tribunal, corporation, board, or person. (CCP § 1085(a).) To obtain an ordinary or traditional writ of mandate, the petitioner must show: "(1) A clear, present and usually ministerial duty on the part of the respondent; and (2) a clear, present and beneficial right in the petitioner to the performance of that duty." (*Santa Clara County Counsel v. Woodside* (1994) 7 Cal.4th 525, 539-49 (citations omitted).)

Respondent argues that Petitioners are not entitled to traditional writ relief for the refusal to restore their tobacco permit because Petitioners failed to exhaust the administrative remedies. "Under the doctrine of exhaustion of administrative remedies, 'where an administrative remedy is provided by statute, relief must be sought from the administrative body and this remedy exhausted before the courts will act.'" (*Park Area Neighbors v. Town of Fairfax* (1994) 29 Cal.App.4th 1442, 1447.) Exhaustion is a jurisdictional prerequisite, which must occur before the court can get involved. (*Id.*) "In order to satisfy the exhaustion of administrative remedies requirement, 'the exact issue raised in the lawsuit must have been presented to the administrative agency so that it will have had an opportunity to act and render the litigation unnecessary.'" (*Harrington v. City of Davis* (2017) 16 Cal.App.5th 420, 441.) A demurrer may properly be sustained based on the failure to plead exhaustion of administrative remedies. (*Tejon Real Estate, LLC v. City of Los Angeles* (2014) 223 Cal.App.4th 149, 156.)

Here, the City provided for an administrative hearing if the request was filed within ten days of the Notice. According to the facts, alleged, Petitioners failed to request a hearing within ten days. As such, Petitioners failed to exhaust the administrative remedies.

However, the administrative remedies exhaustion rule has several exceptions, including but not limited to: (1) when the administrative agency does not provide an adequate remedy or (2) when it is futile to pursue the administrative remedy. (*Campbell v. Regents of University of California* (2005) 35 Cal.4th 311, 322; (*Steinhart v. County of Los Angeles* (2010) 47 Cal.4th 1298, 1313; *Los Globos Corp. v. City of Los Angeles* (2017) 17 Cal.App.5th 627, 633.) The futility exception is very narrow and only applies where a petitioner "can positively state that the administrative agency has declared what its ruling will be in a particular case." (*Steinhart, supra*, 47 Cal.4th at 1313-14.) Further,

the administrative remedy also must comport with due process. (*Bockover v. Perko* (1994) 28 Cal.App.4th 479, 486.) Petitioners have not alleged any facts showing that the administrative hearing offered by the City was inadequate or failed to comport with due process. Nor are there facts suggesting that the City had declared that it would not restore the Permit if Petitioners had timely requested a hearing. As such, they have not established that they were excused from the exhaustion requirement.

However, in addition to challenging the decision to deny restoration of the previously revoked Permit, which is more suited for an administrative mandate, Petitioners also appear to challenge the tobacco permit moratorium implemented by the City, which allegedly prevents Petitioners from applying for a new tobacco retail permit. (Pet., ¶¶ 9, 25.) As stated above, a petition for traditional mandamus may be used to challenge a quasi-legislative decision of a local agency. “Quasi-legislative acts involve the adoption of rules of general application on the basis of broad public policy, while quasi-judicial acts involve the determination and application of facts peculiar to an individual case.” (*Alborzi v. University of Southern California* (2020) 55 Cal. App. 5th 155, 169.) “The inquiry in a traditional mandamus proceeding, in which the trial court reviews quasi-legislative acts, is limited to whether the local agency’s action was arbitrary, capricious, or entirely without evidentiary support, and whether it failed to conform to procedures required by law.” (*California Public Records Research, Inc. v. County of Alameda* (2019) 37 Cal. App. 5th 800, 805.) If the agency’s action was legislative, its findings are reviewed in the trial court by the arbitrary and capricious standard, whereas either independent judgment or substantial evidence standards apply to quasi-judicial decision. (*California Aviation Council v. City of Ceres* (1992) 9 Cal. App. 4th 1384, 1393.)

Although the Petition is somewhat vague as to the terms, it appears that the moratorium is a generally applicable rule barring new tobacco permits within the City that applies to all new permit applications until September 2026. (Pet. ¶ 9.) Thus, the moratorium is a quasi-legislative act by the City. In its Demurrer, the City does not address the moratorium at all or make any argument that the moratorium is proper and conformed with required law. Accordingly, the Demurrer is overruled as to the second cause of action.¹

3.

CASE #	CASE NAME	HEARING NAME
CVRI2402073	BOLORIZADEH vs NATIONAL DEFAULT SERVICING CORPORATION	MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES, REQUESTS FOR ADMISSION, AND REQUESTS FOR PRODUCTION OF DOCUMENTS, SET TWO

Tentative Ruling: Hearing continued to 9/9/2026

¹ To be sustained, a demurrer must dispose of an entire cause of action. (*PH II, Inc. v. Superior Court* (1995) 33 Cal. App. 4th 1680, 1682.) A demurrer will not lie as to only a portion of a cause of action. (*Poizner v. Fremont General Corp.* (2007) 148 Cal. App. 4th 97, 119.)